

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable David A. Silberman
800 North Humboldt Street, San Mateo, CA 94401
Department 11, Courtroom G
Monday July 13, 2026 at 2 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing to the newly assigned department pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept11@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 964 0802 Password: 734616

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
02:00 PM	
17-CLJ-02052	PORTFOLIO RECOVERY ASSOCIATES, LLC VS. JONATHAN BOLANOS
LINE 1	
PORTFOLIO RECOVERY ASSOCIATES, LLC	MICHAEL S. HUNT
JONATHAN BOLANOS	

PLAINTIFF: PORTFOLIO RECOVERY ASSOCIATES, LCC'S HEARING ON CLAIM OF EXEMPTION

TENTATIVE RULING:

On June 1, 2026, plaintiff Portfolio Recovery Associates ("Portfolio"), the judgment creditor herein, filed an opposition to defendant and judgment debtor Jonathan Bolanos ("Bolanos")'s claim of exemption. (See Opposition to Claim of Exemption).

California Code of Civil Procedure, section 706.050 provides, in pertinent part, that garnishment of the wages of an employee is limited to the lesser of 20 percent of the disposable earnings of an individual judgment debtor for any workweek subject to levy (except for certain high earners). The term "disposable earnings" is defined as "the portion of an individual's earnings that remains after deducting all amounts required to be withheld by law." (Code Civ. Proc., § 706.011, subd. (a).)

The burden of proof is on the judgment debtor to demonstrate that the property to be levied on is exempt in whole or in part. (Code Civ. Proc., § 703.580.) Bolanos has submitted a financial statement. Portfolio has a generalized objection but does not identify any particular deduction as "not required by law" or object to any specific expense as excessive. It does, however, indicate that it would accept \$200 per pay period.

It is of note that Bolanos' savings are below the current automatic exemption for funds held in a bank account, which is \$2,244. (Code Civ. Proc., § 704.220, subd, (a), (e); Jud. Council, Form EJ-156, at p. 2 [July 21, 2025].) Accordingly, the Court finds that all of Bolanos' savings are exempt. It is also of note that the Sheriff's Office currently holds \$890.95. It appears from Mr. Bolanos' pay stub that, that is an amount already garnished from his wages from his two pay checks. The Sheriff's Office asks for an Order determining disposition of those funds and neither party has taken a position on the matter.

Bolanos' financial statement is inconsistent with his paystubs. Bolanos indicates his net monthly income is \$1500.28 and he claims monthly expenses of \$2,310. While his expenses are generally reasonable (Code Civ. Proc., § 706.051), his net monthly income appears to be higher than claimed. Looking just at the two paystubs provided, his net monthly income appears to be approximately \$2,356. But that figure appears to underrepresent his monthly income because it excludes the more than \$400 per pay period that it appears was garnished for this case, which would make it appear that Bolanos could pay at least \$846 per month towards his debt.

Accordingly, absent additional information provided at the hearing and based on the information provided, it appears that Bolanos could pay the \$200.00 per pay period towards the outstanding debt sought by Portfolio.

Accordingly, the Court GRANTS creditor's Opposition to defendant/judgment debtor's claim of exemption. The Court ORDERS Bolanos' wages to be garnished in the amount of \$200.00 per pay period. The Court also ORDERS that the Sheriff's Office may release the \$890.95 already garnished to the creditor.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

17-CLJ-04102

BH FINANCIAL SERVICES, INC. VS. HECTOR BARRAGAN, ET AL.

LINE 2

BH FINANCIAL SERVICES, INC.
HECTOR BARRAGAN

JOHN P. KENOSIAN

PLAINTIFF: BH FINANCIAL SERVICES, INC.'S CLAIM OF EXEMPTION (*continued from 6/08/26*)

TENTATIVE RULING:

On May 8, 2026, plaintiff BH Financial Services, Inc. ("BH"), the judgment creditor herein, filed an opposition to defendant and judgment debtor Hector Barragan ("Barragan")'s claim of exemption. (See Opposition to Claim of Exemption).

California Code of Civil Procedure, section 706.050 provides, in pertinent part, that garnishment of the wages of an employee is limited to the lesser of 20 percent of the disposable earnings of an individual judgment debtor for any workweek subject to levy (except for certain high earners). The term "disposable earnings" is defined as "the portion of an individual's earnings that remains after deducting all amounts required to be withheld by law." (Code Civ. Proc., § 706.011, subd. (a)). On his claim of exemption filed on May 19, 2026, Barragan indicates he is able to pay \$40 every two weeks.

The burden of proof is on the judgment debtor to demonstrate that the property to be levied on is exempt in whole or in part. (Code Civ. Proc., § 703.580.) Barragan submitted a confidential financial statement. But while he completed part of the first page of the WG-007 form and provided his income, he initially failed to complete the form with his assets or expenses and omitted the entire second page of the form. BH objected on that basis.

Accordingly the Court lacked the information necessary to evaluate the validity of the exemption. This matter was therefore continued to July 13, 2026 at 2 p.m. Barragan was Ordered to fully complete the WG-007 and attach any additional supporting evidence and have it filed confidentially by June 15, 2026. Barragan was admonished that if he failed to do so, the Exemption will be denied. Barragan submitted additional information on June 12, 2026. BH has not supplemented its generalized objection.

Barragan appears to have filled out the financial form inaccurately because the two (May 19 and June 12) financial forms are filled out inconsistently, although the Court assumes that the errors were inadvertent and relies on the included paystub for income. And Barragan has still failed to include information on his assets despite the Court's admonition to do so. Regardless, just taking into account Barragan's pay stub and his claimed expenses (which the Court finds generally reasonable with the exception of the amount expended on clothing), he may have as much as \$659 per month available to pay his debt. But it is notable that Mr. Barragan has also submitted evidence that suggests he may be out-of-work for a period of three months this Fall (although it is unclear whether that will impact his income), as well as some evidence of potential housing instability.

Absent additional information provided at the hearing and based on the information provided, it appears that Barragan can pay \$125.00 per pay period towards the outstanding debt owed to BH.

Accordingly, the Court GRANTS IN PART creditor's Opposition to defendant/judgment debtor's claim of exemption. The Court ORDERS Barragan's wages to be garnished in the amount of \$125.00 per pay period.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

21-CIV-04741 MICHAEL D. LIBERTY VS. BANK OF THE WEST, ET AL.

LINE 3

MICHAEL D. LIBERTY
RONALD O'CONNELL

PRO PER
EDWARD S. ZUSMAN

DEFENDANT: SARAH HILLHOUSES MOTION FOR SUMMARY JUDGMENT (*continued from 07/06/26*)

TENTATIVE RULING:

The Motion for Summary Judgment or, in the alternative, Summary Adjudication, by Defendant Sarah Hillhouse ("Defendant" or "Sarah") to the Fourth Amended Complaint ("4AC") of Plaintiff Michael D. Liberty ("Plaintiff") is DENIED in part and GRANTED in part..

Background

According to the operative Fourth Amended Complaint, Plaintiff is an attorney who employed Defendant (his onetime girlfriend) as an independent contractor, a bookkeeper.(4AC, ¶ 5.) Defendant had control over Plaintiff's finances, books, records, credit cards and accounting documents. (Ibid.) Plaintiff alleges that Defendant embezzled approximately \$800,000 from Plaintiff's retirement account, or "defined benefit plan," using secret bank transfers, and also embezzled from Plaintiff's business checking account, as well as illegally incurred charges on Plaintiff's credit cards and other accounts. (4AC, ¶ 14-16.)

Defendant seeks summary judgment or alternatively, summary adjudication to the Ninth through Fourteenth Causes of Action in the 4AC.

Legal Standard

The pleadings play a key role in a summary judgment motion by framing the outer measure of materiality in a summary judgment proceeding. (*Hutton v. Fidelity National Title Co.* (2013) 213 Cal.App.4th 486, 493.) Thus, a defendant moving for summary judgment is only required to negate a plaintiff's theories of liability as alleged in the complaint. (*Id.*) Thus, the first step in analyzing a summary judgment motion is identifying the issues framed by the pleadings since it is these allegations to which the motion must respond. (*Id.*) Next, the moving party must establish facts that negate the claim and justify a judgment in the moving party's favor. (*Id.*, at 493-494.) If the moving party meets this burden, then the court must determine whether the opposition demonstrates a triable issue of material fact. (*Id.* at 494.)

For purposes of a summary judgment or summary adjudication motion, the defendant has met the initial burden of showing that a cause of action has no merit if the party has shown that one or more elements cannot be established, or there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the defendant has met this burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (*Id.*)

For a defendant to meet the initial burden, it may present affirmative evidence negating as a matter of law an essential element of plaintiff's claim. (*Guz v. Bechtel Nat., Inc.* (2000) 24 Cal.4th 317, 334.) Another way for a defendant to meet its initial burden is to show that an essential element of plaintiff's claim cannot be established. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.) To rely on an absence of evidence, the defendant must show that plaintiff does not possess and cannot reasonably

obtain needed evidence. (*Id.*) Such evidence usually consists of admissions by plaintiff following sufficient discovery to show plaintiff has discovered nothing to support an essential element of the cause of action. (*Id.* at p. 855.) The defendant cannot just point out through argument that plaintiff does not possess and cannot reasonably obtain needed evidence, but must indeed present evidence. (*Id.*)

Discussion

Ninth Cause of Action for Conversion

The elements of a conversion cause of action are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant converted the property by a wrongful act or disposition of property rights; and (3) the plaintiff suffered damages as a result. (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1240.)

The 4AC alleges that Plaintiff and Defendant agreed that Defendant would primarily have control over Plaintiff's finances. (4AC, ¶ 41.) Plaintiff claims that Defendant converted the funds from his law practice by using Plaintiff's bank accounts and credit cards for Defendant's own personal use and embezzling money from Plaintiff's defined benefit plan. (4AC, ¶¶ 45-54.)

Defendant contends that Plaintiff is collaterally estopped from bringing this claim against her because these issues were already decided in a prior family law action between Defendant and his ex-wife.

Collateral estoppel, or issue preclusion, prohibits relitigating issues argued and decided in a previous case, even if the second suit raises different causes of action. (*DKN Holdings LLC v. Faerber* (2015) 61 Cal.4th 813, 824.) For collateral estoppel to apply, the following threshold requirements must be fulfilled: (1) the issue sought to be precluded from relitigation must be identical to that in the former proceeding; (2) the issue must have been actually litigated in the former proceeding; (3) the issue must have been necessarily decided in the former proceeding; (4) the decision must be final and on the merits in the former proceeding; and (5) the party against whom preclusion is sought must be the same as, or in privity with, the party to the former proceeding. (*Lucido v. Sup. Ct.* (1990) 51 Cal.3d 335, 341.) The party claiming collateral estoppel has the burden of establishing these requirements. (*Id.*)

Defendant's evidence fails to show that the issues raised in this conversion claim are identical to the issues in the family law action, were actually litigated and necessarily decided. The matter before the family court was an OSC re: contempt. (Defendant's Request for Judicial Notice, Exh. D.) Plaintiff testified in the family action that Defendant fraudulently transferred money out of the retirement depleted his checking account and made unauthorized purchases and embezzled funds. (Defendant's Undisputed Material Fact ("DUMF") nos. 3, 7-12.) The court found Plaintiff's testimony lacked credibility and was self-serving, and that Plaintiff gave unfettered financial access to accounts and the responsibility of taking on financial information for the divorce to his girlfriend. (DUMF no. 13.) The court also found that Plaintiff violated his fiduciary obligations to his ex-wife with respect to dissipation of the funds from the defined benefit plan. (DUMF no. 14.) Defendant has not shown that in making this ruling, the issue of whether (and the extent to which) Defendant stole from Plaintiff (if at all) was necessarily decided in finding Defendant in contempt in the family law action, *i.e.*, that the Court found that Sarah Hillhouse had not stolen from him and he couldn't have been held in contempt if the Court found Sarah Hillhouse also stole from him.

Defendant therefore fails to meet her initial burden of showing that collateral estoppel bars this action. The Motion is DENIED as to the Ninth Cause of Action.

Defendant raises for the first time in reply that this conversion claim fails because Plaintiff expressly consented and he was not harmed. (Defendant's Reply, pp. 4:23-6:4.)

Such arguments are not properly before the court because they were not raised in Defendant's moving papers. (*Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 227-228 [general rule of motion practice is that new evidence or arguments are not permitted with reply papers based on the unfairness to the opponent of not being able to address the new matter raised in a reply].) As such, the court declines to rule on these arguments.

Tenth Cause of Action for Civil Embezzlement

The Tenth Cause of Action for Civil Embezzlement alleges that Plaintiff entrusted his money, accounts, credit cards, defined benefit plan and business checking account to Defendant, and she fraudulently converted, appropriated and used Plaintiff's property for her own benefit or the benefit of her family members. (4AC, ¶¶ 163-166.)

Defendant argues that: (1) no civil right of action exists for embezzlement, (2) collateral estoppel bars this claim, and (3) the funds were given to Defendant by Plaintiff giving her a claim of right to the monies.

First, there is a civil right of action for embezzlement. (See Penal Code, § 496; *People v. Kunkin* (1973) 9 Cal.3d 245, 250 ["Section 496 is "intended to include property which has been obtained not only by theft by larceny (i.e., stealing) but also by such other forms of theft as embezzlement."].)

Second, the Court has already explained why collateral estoppel does not entitle Defendant to summary adjudication.

Third, Defendant claims she has a complete defense to any claimed embezzlement because the property was appropriated openly and under a claim of title in good faith. (See Penal Code, § 511.) "California authority in interpreting section 511 has indicated that where an individual honestly believes that he is authorized to appropriate and use property which he is accused of embezzling, the fraudulent intent which is a necessary element of that crime is absent." (*People v. Stewart* (1976) 16 Cal.3d 133, 139, citing *People v. McManus* (1960) 180 Cal.App.2d 19, 40.)

Defendant's evidence is insufficient to meet her initial burden of showing that this defense bars this cause of action. Defendant acknowledges that the allegations in the 4AC allege that Defendant embezzled money from Plaintiff's defined benefit plan and business checking account with Bank of the West, Defendant incurred unauthorized credit charges, Defendant forged checks, and Defendant made unauthorized electronic bank transfers and wire transfers. (DUMF nos. 18-21.) Defendant claims Plaintiff gave her an American Express credit card and told her to use it. (DUMF no. 29.) Defendant also claims Plaintiff instructed her to make withdrawals. (DUMF no. 33.) In support, Defendant cites to page 111 of her deposition testimony. (Diemer Decl., Exh. D, p.111.) Defendant testified that she did not make any charges on the defined benefit plan and wrote checks on the defined benefit plan at Plaintiff's instruction. (Id.) However, none of Defendant's undisputed material facts address this claim of right to the monies defense with respect to any alleged actions taken by her as to Plaintiff's business checking account at Bank of the West. As discussed above, the pleadings define the issues on a summary judgment motion. (*Hutton*, 213 Cal.App.4th at p. 493.) Defendant therefore fails to show that this defense operates as a complete bar to Plaintiff's cause of action since she fails to address all the allegations in support of this claim.

The Motion as to the Tenth Cause of Action is therefore DENIED.

Eleventh Cause of Action for Breach of Fiduciary Duty

A cause of action for breach of fiduciary duty has three elements: (1) existence of a fiduciary duty, (2) breach of that duty, and (3) damages proximately caused by the breach. (*Stanley v. Richmond* (1995) 35 Cal.App.4th 1070, 1086.) The issue of whether a fiduciary duty exists is generally a question of law. (*Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 629.)

Plaintiff alleges that Defendant was “Plaintiff’s independent contractor bookkeeper and one time girlfriend. Sarah Hillhouse had authority and control over Plaintiffs finances, books, records, credit cards and accounting documents.” (4AC, ¶ 5.)

Defendant argues that no fiduciary relationship exists to support this claim based on her role as a paralegal, a bookkeeper or Plaintiff’s girlfriend. (*See Wolf v. Sup. Ct.* (2003) 106 Cal.App.4th 25, 29 (*Wolf*).)

Plaintiff responds that a fiduciary relationship existed based on the relationship between the parties here, citing CACI 4100.

A fiduciary relationship exists between parties to a transaction wherein one of the parties is duty bound to act with the utmost good faith for the benefit of the other party. (*Wolf*, 106 Cal.App.4th at p. 29.) Such a relationship is synonymous with confidential relation, and is “founded upon the trust or confidence reposed by one person in the integrity and fidelity of another, and likewise precludes the idea of profit or advantage resulting from the dealings of the parties and the person in whom the confidence is reposed.” (*Id.*, at p. 30.) In *Wolf*, an author filed an action against a film and television production company, Disney, alleging breach of fiduciary duty and breach of contract after the defendant agreed to provide plaintiff with a percentage of future merchandising revenue and audit rights in exchange for the rights to cartoon characters developed by plaintiff. (*Id.* at p. 28.) The court found no fiduciary relationship existed based on a contingent entitlement to future compensation, profit-sharing aspect of an agreement alone, and the contractual right to an accounting. (*Id.* at pp. 30-35.) Thus, *Wolf* supports finding that a fiduciary duty did not exist between Plaintiff and Defendant.

Plaintiff’s reliance on CACI 4100 also does not show a fiduciary duty existed. CACI 4100 states:

4100 “Fiduciary Duty” Explained

[A/An] [agent/stockbroker/real estate agent/real estate broker/corporate officer/partner/[insert other fiduciary relationship]] owes what is known as a fiduciary duty to [his/her/nonbinary pronoun/its] [principal/client/corporation/partner/[insert other fiduciary relationship]]. A fiduciary duty imposes on [a/an] [agent/stockbroker/real estate agent/real estate broker/corporate officer/partner/[insert other fiduciary relationship]] a duty to act with the utmost good faith in the best interests of [his/her/nonbinary pronoun/its] [principal/client/corporation/partner/[insert other fiduciary relationship]].

(Judicial Council Of California Civil Jury Instruction 4100.) Plaintiff fails to show that the relationship between Plaintiff and Defendant falls within any of these specific categories or some other type of fiduciary relationship.

Based on the authorities cited by the parties, the Motion is GRANTED as to the Eleventh Cause of Action on the ground that no fiduciary duty existed between Plaintiff and Defendant.

Twelfth Cause of Action for Fraud, including Concealment

The elements of a cause of action for fraud are: “(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (*Lazar v. Sup. Court* (1996) 12 Cal.4th 631, 638.)

The 4AC alleges that Defendant made several oral representations to Plaintiff, including that Defendant graduated from McGeorge School of Law, that Plaintiff was an expert in Quicken and bookkeeping from previously serving as a breach manager at Wells Fargo Bank, and regarding making only authorized charges on credit cards and the checking account. (4AC, ¶ 179(a)-(h).)

Defendant argues that Plaintiff cannot establish reasonable reliance on any statements regarding McGeorge School of Law because Plaintiff had an obligation to verify the truth of this representation at the time of hiring, citing Cal. Rules of Professional Conduct 5.3(a)-(b).)

California Rules of Professional Conduct Rule 5.3 does not support Defendant’s argument. Rule 5.3 states:

With respect to a nonlawyer employed or retained by or associated with a lawyer:

(a) a lawyer who individually or together with other lawyers possesses managerial authority in a law firm,¹ shall make reasonable* efforts to ensure that the firm* has in effect measures giving reasonable* assurance that the nonlawyer's conduct is compatible with the professional obligations of the lawyer;

(b) a lawyer having direct supervisory authority over the nonlawyer, whether or not an employee of the same law firm,* shall make reasonable* efforts to ensure that the person's* conduct is compatible with the professional obligations of the lawyer;

...

(Cal. Rules of Prof. Conduct, Rule 5.3(a)-(b).) Defendant has not provided any authority supporting that this rule means an attorney must verify a law school or conduct a background check to satisfy this rule.

The Court therefore cannot grant the Motion on a reasonable reliance theory and need not address Defendant’s remaining argument with respect to the remaining representations.

Defendant also claims that this fraud claim fails because no fiduciary duty exists between Plaintiff and Defendant to support concealment. This cause of action is labeled “FRAUD, INCLUDING CONCEALMENT.” While this claim alleges fraud based on concealment, it also alleges oral misrepresentations. (4AC, ¶¶ 179-180.) Accordingly, Defendant’s argument fails.

Lastly, Defendant raises collateral estoppel but the Court has already explained why collateral estoppel does not entitle Defendant to summary adjudication.

The Motion is therefore DENIED as to this cause of action.

Thirteenth Cause of Action for Constructive Fraud

The elements of a cause of action for fraudulent concealment are: “(1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (*Rattagan v. Uber*

Technologies, Inc. (2024) 17 Cal.5th 1, 40.) A duty to disclose a material fact can arise if the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances. (*Id.*)

Plaintiff acknowledges in opposition that the analysis for this cause of action is identical to the breach of fiduciary duty claim. (Plaintiff's Opposition, p. 10:21.) For the reasons addressed in the breach of fiduciary duty claim, the court finds that no fiduciary duty existed between Plaintiff and Defendant to support a duty to disclose. The Motion is GRANTED as to this cause of action.

Fourteenth Cause of Action for Accounting

Defendant contends that an accounting is not available between an employer and an employee, and therefore this cause of action fails unless Plaintiff demonstrates a relationship between them that requires an accounting, citing *Brea v. McGlashan* (1934) 3 Cal.App.2d 454, 460.) The court rejects this argument.

In *Brea*, supra, 3 Cal.App.2d at p. 460, the court found that while ordinarily no accounting is necessary between an employer and an employee, an accounting cause of action could be stated where an accounting would be the only method of arriving at the amount due. A cause of action for accounting only needs to state facts showing the existence of the relationship requiring an accounting and the statement that some balance is due to the plaintiff. (*Id.*) "An accounting is an equitable proceeding which is proper where there is an unliquidated and unascertained amount owing that cannot be determined without an examination of the debits and credits on the books to determine what is due and owing." (*Prakashpalan v. Engstrom, Lipscomb & Lack* (2014) 223 Cal.App.4th 1105, 1136–1137.)

The 4AC alleges that there currently exists unsettled accounts, including moneys misappropriated and/or concealed by Defendant, which can only be determined by an accounting. (4AC, ¶ 203.) Defendant is alleged to be in possession of the financial information relating to these moneys, and Plaintiff claims he is unable to ascertain the true status of his law firm's books and records. (4AC, ¶ 205.) These allegations are sufficient to support an accounting.

The Motion is DENIED to this cause of action.

Plaintiff's Secondary Liability Theories

Plaintiff argues that Defendant's Motion fails to address secondary liability theories of aiding and abetting and conspiracy. (See 4AC, ¶¶ 11-13.) Plaintiff claims in opposition that Defendant may be held liable for aiding and abetting a breach of fiduciary duty. (Plaintiff's Opposition, pp. 5:22-6:8.) Plaintiff contends that Defendant has not met her initial burden for this reason.

While the General Allegations include generic, boilerplate allegations regarding aiding and abetting and conspiracy as to each of the defendants, the 4AC does not allege any cause of action against Defendant for aiding and abetting and conspiracy.

Nevertheless, even if Plaintiff had properly pleaded a cause of action against Defendant for aiding and abetting a breach of fiduciary duty, any alleged liability for aiding and abetting or conspiracy is premised on the liability of Defendant Kristina Hillhouse. Liability for aiding and abetting or conspiracy theory is derivative. (*Richard B. LeVine, Inc. v. Higashi* (2005) 131 Cal.App.4th 566, 579.) Such liability is imposed on one person for the direct acts of another. (*Id.*) The court granted Defendant Kristina Hillhouse's summary judgment motion. (See July 6, 2026 Minute Order.) Therefore, no derivative liability may be imposed on Defendant for any alleged wrongdoing by Defendant Kristina Hillhouse.

Request for Judicial Notice

Plaintiff's Request for Judicial Notice is GRANTED. Despite Defendant's objections, assuming judicial notice is even required, the court may take judicial notice of these documents in the court records. (See Evid. Code, § 452, subd. (d).) However, while the court may take judicial notice of court documents, it does not take judicial notice of the truth of hearsay statements in court files, including pleadings, affidavits, testimony, or statements of fact. (*Williams v. Wraxall* (1995) 33 Cal.App.4th 120, 130, fn.7.)

Defendant's Request for Judicial Notice is also GRANTED. (See Evid. Code, § 452, subd. (d).)

Evidentiary Objections

Plaintiff filed evidentiary objections to Defendant's Separate Statement of Facts. "All written objections to evidence must be served and filed separately from the other papers in support of or in opposition to the motion. Objections on specific evidence may be referenced by the objection number in the right column of a separate statement in opposition or reply to a motion, but the objections must not be restated or reargued in the separate statement." (Cal. Rules of Court, rule 3.1354(b).) Written objections to evidence must also follow one of two formats set forth in rule 3.1354(b). Plaintiff failed to comply with rule 3.1354 as he makes his evidentiary objections to the separate statement of facts rather than specific evidence. Plaintiff also failed to comply with one of the formats required for evidentiary objections. The court therefore declines to rule on these objections. (See *Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1, 8 [trial court did not abuse its discretion in refusing to rule on evidentiary objections where they did not comply with rule 3.1354].)

While many would be well-taken, the court also need not rule on Defendant's evidentiary objections to Plaintiff's Declaration filed with Defendant's reply. (See Code Civ. Proc., § 437c, subd. (q) ["In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion."].)

Conclusion

Defendant's Motion for Summary Judgment is DENIED. Defendant's Motion for Summary Adjudication as to the Ninth, Tenth, Twelfth and Fourteenth Causes of Action are DENIED. Defendant's Motion for Summary Adjudication to the Eleventh and Thirteenth Causes of Action are GRANTED.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the Defendant shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

23-CIV-04082 SEILER, LLP VS. JASJIT MANGAT

LINE 4

SEILER, LLP
JASJIT MANGAT

KATHRYN S. DIEMER

PLAINTIFF'S COUNSEL: KATHRYN S. DIEMER'S MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motion of Kathryn Diemer and Diemer & Wei to be relieved as counsel of record for plaintiff Seiler, LLP is granted. Pursuant to CRC 3.1362(e), **the order does not become effective until proof of service of a copy of the signed order on the client has been filed with the court.**

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Kathryn Diemer or her designee shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

24-CIV-04983 AL MINOR VS. COSTAR IMPORTS, INC., ET AL.

LINE 5

AL MINOR
COSTAR IMPORTS, INC.

ELISE R. VASQUEZ
ERNEST M. MALASPINA

PLAINTIFF: AL MINOR'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Plaintiff Al Minor's motion for leave to file a first amended complaint (hereinafter "FAC") is DENIED without prejudice.

Defendant's concurrently filed request for judicial notice of two exhibits, plaintiff's verified responses to Form Interrogatory Nos. 208.1 and 50.1, is GRANTED. (Evid. Code § 453.)

Background

This is an employment action arising from plaintiff's role as Vice President of Sales with Defendant Costar Imports, Inc., a national luxury jewelry purveyor, from April 12, 2021 through January 31, 2024. Plaintiff's complaint alleges six causes of action and was filed on August 12, 2024.

Approximately two years later, on May 29, 2026, plaintiff filed the instant motion which seeks to add three new causes of action and name two Doe Defendants. Defendant Costar Imports, Inc. opposes, contending the motion is both procedurally and substantively defective and prejudicial because "the proposed amendment does not clarify existing allegations—it transforms the case by expanding liability, introduce new legal theories, and requiring duplicative and burdensome discovery, delaying resolution, and increasing costs." (Opp. p. 18.)

Legal Standard

Motions for leave to amend the pleadings are left to the sound discretion of the trial court judge. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (Code Civ. Proc. § 473, subd. (a)(1) [emphasis added]; see Code Civ. Proc. § 576.) Under code section 576 a "judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (*McMillin v. Eare* (2021) 70 Cal.App.5th 893, 909 [italics in original omitted].)

"California courts have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." (*Mac v. Minassian* (2022) 76 Cal.App.5th 510, 519.) (citations and internal quotations omitted). However, the long deferred presentation of a proposed amendment without a showing of excuse for the delay, even if otherwise good and proposed in proper form, is itself a significant factor supporting denial of the proposed amendment. (Michael Paul Thomas, Cal. Civ. Ctrm. Hbook. & Desktop Ref. (2025 ed.) § 9:63 Amending the Complaint Any Time Before Judgment.)

Discussion

Under California Rules of Court, rule 3.1324, subdivision (a), the party seeking to amend should prepare a written application for leave to amend with the following attachments:

- A copy of the proposed amendment or amended pleading;
- A declaration by counsel stating why amendment is necessary; and
- A proposed order authorizing the amendments.

(Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group, June 2025 Update) ¶ 6.623)

Furthermore, a motion to amend must be supported by a declaration specifying: (1) the effect of the amendment; (2) why it is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier (Cal. Rules of court, rule 3.1324(b).)

Here, as contended by defendants, the court finds plaintiff's motion is procedurally deficient in many aspects. First, the motion does not comply with California Rules of Court, rule 3.1324, subdivision (a) because it fails to include a copy of the proposed amended complaint and plaintiff did not file a declaration setting forth the allegations proposed to be added and deleted, and where, by page, paragraph, and line number. The Court notes the proposed FAC is appended to the Declaration of plaintiff's counsel Ms. Elise Vasquez, but the memorandum in support of the motion does not meaningfully address anything about the FAC or cite to the amended allegations other than mention in footnote that the FAC is attached as exhibit J to counsel's declaration.

More important, plaintiff's motion does not comply with California Rules of Court, rule 3.1324, subdivision (b) because the declaration of plaintiff's counsel only discusses the timing of the decision to file the amended complaint and the timing of parties' meet and confer efforts regarding a proposed stipulation to the FAC. In pertinent part, the declaration does not satisfy any of the requirements of the rule specifying the effect of the amendment, explaining why the amendments are necessary and proper, when the facts giving rise to the amended allegations were discovered and why the request to amend was not made earlier, although it is somewhat implied.

But most important, it appears that Plaintiff **attempted** to file a reply brief (which has not been docketed) and declaration to address some of these issues **and apparently attached a revised complaint**. The Court believes this to be the case despite not having seen the reply because on July 8, 2026 Defendant filed an objection to this purported reply and provided the Court a courtesy copy (of its objection). So ultimately the Court does not now know what amendment it is actually being asked allow plaintiff to file.

Accordingly, based on these many procedural failures, plaintiff's motion for leave to file an amended complaint is DENIED.

However, the Court anticipates that Plaintiff will continue to seek to amend. If plaintiff does, the Court directs the parties to cooperate and have an **in person or video** meet and confer prior to the plaintiff filing another motion and consider stipulating at least to a reasonable amendment addressing the new claims that were purportedly not resolved by the labor board in May 2026.

To support that meet and confer, the Court will note that with respect to the existing six causes of action, the opposition contends that plaintiff cannot demonstrate the amendments are necessary and proper "because there is no individual liability for the first six causes of action as a matter of law and thus leave

to amend with respect to adding the proposed individual defendants to these causes of action should be denied as futile.” (Opp. p. 12.) It also raises statute of limitations and other issues. Plaintiff has not addressed these arguments and should before seeking to amend.

Further, defendants contend amending the complaint at this stage in the proceedings would prejudice defendants because the proposed FAC “dramatically expands” the scope of the entire action by adding the two additional defendants to every claim- nine in total- not just the three new proposed wage and hour causes of action. (Opp. p. 18.) The end result would force Defendant Costar Imports and the new defendants to significantly change their litigation strategy which would include new written discovery and revisit prior discovery, much of which would be duplicative and already performed at significant expense. The prejudice would be compounded by the fee-shifting nature of the claims which would amplify the defendants’ financial exposure by increasing costs and potential fee liability. Additionally, separate counsel may be retained which would increase costs, complicate coordination and potentially multiply motion practice.”

But, leave to amend is prejudicial to an adverse party when amendment would result in the following issues: a delay of trial, the loss of an opportunity for motion practice, the loss of critical evidence, added costs of preparation, and increased burdens of discovery. (*P&D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal.App.4th 1332, 1345.) In some cases, even the “time and expense associated with opposing a legal theory” can be prejudicial. (*Payton v. CSI Elec. Contractors* (2018) 27 Cal.App.5th 832, 849 [plaintiff belatedly sought to adopt new legal theories after a failed motion for class certification].) However, “[a]bsent prejudice, delay alone [is] not ground for denial: If delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case, even if sought as late as the time of trial. [Citations omitted].” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group, June 2025 Update) ¶ 6:653.)

Here, while defendant raises valid points regarding the potential for prejudice resulting from added costs of preparation and likely increased burdens of discovery, there is no trial date set and it appears it will be difficult for Defendant to establish that the prejudice asserted outweighs the Court’s liberal policy to amend should plaintiff file another motion to amend.

02:00 PM

24-CIV-08298 FABIOLA BARAJAS LOZANO VS. FCA US, LLC., ET AL.

LINE 6

FABIOLA BARAJAS LOZANO
FCA US, LLC.

LARRY W. CHAE
BRADFORD G. HUGHES

DEFENDANT: FCA US, LLC'S MOTION TO COMPEL PLAINTIFF FABIOLA BARAJAS LOZANOS INTITAL RESPONSES TO DEFENDANTS REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE (1) AND REQUEST FOR SANCTIONS IN THE AMOUNT OF \$608.00

TENTATIVE RULING:

The unopposed motion is granted. Plaintiff shall serve verified responses, without objection, to defendant's Request for Production of Documents, Set One, within 14 days. The request for sanctions is also granted. Plaintiff shall pay defendant \$368 (\$148 plus \$160 plus \$60) within 30 days.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-03534 JOSH RAFFAELLI VS. BROOKFIELD ASSET MANAGEMENT LLC, ET AL.

LINE 7

JOSH RAFFAELLI
BROOKFIELD ASSET MANAGEMENT LLC

MARK MERMELSTEIN
JOSH A. COHEN

PLAINTIFF: JOSH RAFFAELLI'S AMENDED NOTICE OF MOTION TO COMPEL PRODUCTION OF WITNESSES FOR DEPOSITION AND DEFENDANTS MOTION FOR PROTECTIVE ORDER

TENTATIVE RULING:

This tentative addresses both line 7 and line 9 of this Calendar. Plaintiff Josh Raffaelli ("Plaintiff") moves to compel the depositions of Defendants Anuj Ranjan and Nicholas Sammut (collectively, "Defendants"). Defendants move for a protective order staying their depositions until certain recordings and transcripts in Plaintiff's possession are produced.

Defendants' motion for a protective order is GRANTED.

Plaintiff's motion to compel is DENIED in light of the issuance of the protective order but the Court would consider (and believes there would be good cause) setting an expedited schedule at hearing on July 13, 2026 for these depositions, consistent with the protective order, if the Plaintiff wishes and timely notices an intention to appear. It is unclear to the Court if Plaintiff will continue to pursue expedited deposition(s) if this Order becomes final.

Background

Plaintiff was formerly Managing Director of Brookfield's Venture Capital ("VC") group. (TAC, ¶¶ 1, 40.) It is alleged that Defendant claimed that on November 14, 2024, Defendant Ranjan informed Plaintiff during a call that Brookfield had decided to transition management of the funds elsewhere, and that Plaintiff's employment would be terminated. (Id., at ¶¶ 12, 150.)

The parties apparently hotly dispute statements made during a phone call November 14, 2024. Plaintiff claims that Mr. Ranjan did not inform him of his impending termination during that call and that Brookfield allegedly did not decide to terminate Plaintiff's employment until after November 22, 2024, the date he informed Brookfield that he had filed a purported whistleblower complaint with the Securities and Exchange Commission. (Id., ¶¶ 12, 155.) Defendants apparently claim that Mr. Ranjan informed Plaintiff of the decision to terminate during the November 14, 2024 call. (Oppo., 8:4-6.)

Plaintiff recorded the November 14, 2024 call and is in possession of the recording and a transcript of that conversation, as well as other conversations with his colleagues. (Reilly Decl., ¶ 2.) Defendants do not have possession of the recordings or the transcripts. (Id.)

Defendant made multiple demands to Plaintiff to provide the November 14, 2024 recording, and any other recordings, before Plaintiff filed this action. (Reilly Decl., ¶ 3.) Plaintiff filed this action on May 8, 2025. On July 25, 2025, Defendants' counsel demanded in writing that Plaintiff's counsel produce by

August 11, 2025 all recordings (and any transcripts of recordings) of communications with Plaintiff's Brookfield colleagues that are in Plaintiff's possession, custody, or control. (Id., ¶ 4.) On August 8, 2025, Plaintiff's counsel refused to produce any of the recordings or transcripts and stated that if Defendants "want copies of any recordings – or any documents bearing on the dispute – you are certainly free to serve a request for production when discovery opens in the matter." (Id.)

From June 6, 2025 through November 12, 2025, proceedings in this action were stayed while the parties litigated Defendants' removal of the case to federal court and Plaintiff's motion to amend the complaint and remand the case to state court. (Id., at ¶ 5.) Plaintiff filed the SAC on November 17, 2025. Shortly thereafter, Plaintiff told Defendant that a third amended complaint would be filed in December – an expectation that was later pushed back to January. (Id., at ¶ 7.) Believing the filing of a TAC was imminent, Plaintiff waited to serve discovery requests so that they could be tailored to the TAC. (Id., at ¶ 8.) However, on January 22, 2026, before the TAC was filed, Plaintiff served a notice of deposition for Mr. Ranjun. (Id., at ¶ 11.) On February 9, 2026, Defendants served Plaintiff with their RFP1, which included a request for all recordings and transcripts related to Plaintiff's termination from Brookfield Asset Management, including the recordings and transcripts of the November 14, 2024 call between Plaintiff and Mr. Ranjan. (Id., at ¶ 12.)

On February 19, Defendant Ranjan served his responses and objections to the deposition notice and document requests. (Lander Decl., Ex. 3.) Defendant argued that Plaintiff must produce all recordings and transcripts of conversations involving Defendant Ranjan before the deposition. (Id.) On March 3, 2026, Plaintiff served a deposition notice and documents requests on Defendant Sammut. (Id., at Ex. 4.) On March 12, 2026, Defendant Sammut served his objections to the deposition notice. (Id., at Ex. 5.)

After several attempts to meet and confer to resolve their disagreements, the parties participated in an Informal Discovery Conference ("IDC"). (Lander Decl., ¶¶ 11-12.) The parties did not come to an agreement.

Discussion

Defendants argue that under California law, a party cannot leverage exclusive access to recordings of a deponent's own statements to manufacture impeachment opportunities or secure an unfair tactical advantage. (Oppo., 15:17.) Defendants argue that where a party possesses recorded conversations with a deponent, California courts have uniformly found good cause to require production of the recordings before the deposition. Therefore, the ordinary sequencing of discovery should not control and the Court should enter a protective order staying Defendants' depositions and requiring Plaintiff produce the subject recordings and transcripts prior to Defendants' depositions.

Plaintiff argues that there is no legal basis to precondition Defendants' depositions on the production of the subject recordings and transcripts prior to those depositions. Plaintiff argues that the sequence of propounded discovery controls and, therefore, Defendant Ranjan should be deposed before Plaintiff is required to produce the subject recordings and transcripts.

Under California law, a court may issue a protective order related to a deposition upon a showing of good cause. (Code Civ. Proc., § 2025.420, subd. (a).) The statute authorizes a court, "for good cause shown," to make "any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense," including that a deposition be stayed, delayed, or conditioned. (Code Civ. Proc., §§ 2025.420, subd. (b)(1) (2), (5).)

Good cause for a protective order can exist when the noticing party refuses to produce recordings of the deponent's statements prior to the deposition. (*Rosemont v. Superior Court* (1964) 60 Cal.2d 709, 712, 714-15 [affirming trial court's order requiring plaintiff to produce recordings of defendants' communications prior to the depositions]; *Poeschl v. Superior Court* (1964) 229 Cal.App.2d 383, 386-87 [reversing trial court and directing it to order plaintiff to produce recorded conversations before taking defendant's deposition].)

The parties appear to agree (at least implicitly) that this is a discretionary decision. Plaintiff Reply at n. 5; Defendants Opposition at 12. While both parties make reasonable arguments, the Court concludes that there is good cause to require Plaintiff to produce the recording(s) prior to the depositions and exercises its discretion to so order. Plaintiff is right that "discovery proceedings can seldom if ever be conducted simultaneously, it is inherent in such proceedings that the party who secures discovery first may derive advantages by securing information from his adversary before he is required to reciprocate by divulging information to him. Parties should be encouraged to expedite discovery and should not needlessly be deprived of the advantages that normally flow from prompt action. Accordingly, the existence of such advantages alone will ordinarily not constitute good cause for changing the normal timing of discovery or justify a conclusion that such timing will result in 'annoyance, embarrassment, or oppression.'" *Rosemont*, 60 Cal.2d at 714. And Plaintiff is and was well within his rights to seek an early deposition(s). But the Defendants are right that Plaintiff "is not seeking merely the advantages that would flow from the normal timing of discovery. He is [effectively] seeking the advantages that would flow from his being able to refresh his recollection from the recordings before giving his deposition while denying [Defendant] equal opportunity to refresh [his] recollection[] before giving [his] deposition[]." *Id.* While Plaintiff contends that he has not reviewed the transcript for some time, that does not mean that he could not or would not refresh his memory before his deposition. Further, the Court believes the Defendants acted with reasonable diligence to obtain the recording(s)/transcript(s) prior to the deposition and credits counsel's declaration that Defendants sought the recording(s)/transcript(s) repeatedly and delayed serving formal discovery because of the then pending Third Amended Complaint.

Accordingly, the Court GRANTS Defendants' motion for a protective order requiring that Plaintiff produce the recordings and transcripts **not less than** ten calendar days prior to taking Defendants' depositions.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Defendants shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-03534 JOSH RAFFAELLI VS. BROOKFIELD ASSET MANAGEMENT LLC, ET AL

LINE 8

JOSH RAFFAELLI
BROOKFIELD ASSET MANAGEMENT LLC

MARK MERMELSTEIN
JOSH A. COHEN

DEFENDANTS' DEMURRER TO PLAINTIFF'S THIRD AMENDED COMPLAINT

TENTATIVE RULING:

Defendants' Demurrer to Plaintiff's Third Amended Complaint ("TAC") is OVERRULED, except as to the the Twelfth Cause of Action for Civil Theft Under Cal. Penal Code Section 496, which is SUSTAINED WITH LEAVE TO AMEND pursuant to Code Civ. Proc. Section 430.10 subd. (e), for the reasons described below.

Defendants' Request for Judicial Notice is GRANTED pursuant to Evidence Code Section 452 subd. (h).

The term "Brookfield" is used in Plaintiff Josh Raffaelli's Third Amended Complaint ("TAC") to collectively refer to BROOKFIELD ASSET MANAGEMENT LLC, a Delaware limited liability company, BROOKFIELD ASSET MANAGEMENT LTD., a Canadian corporation, BROOKFIELD CORPORATION, a Canadian corporation, BROOKFIELD BUSINESS PARTNERS L.P., a Bermuda limited partnership, BROOKFIELD TECHNOLOGY PARTNERS II OFFICER GP LLC, a Delaware limited liability company, BROOKFIELD TECHNOLOGY GROWTH PARTNERS III OFFICER GP LLC, a Delaware limited liability company, BROOKFIELD TECHNOLOGY GROWTH PARTNERS III ANNEX GP L.P., a Delaware limited partnership, and BROOKFIELD CORPORATE TREASURY LTD., a Canadian corporation. (TAC, at p. 3:2-10.) BROOKFIELD ASSET MANAGEMENT LTD. ("BAM") is a Canadian corporation. (TAC, ¶16.)

"On or about October 5, 2024, Raffaelli filed an anonymous complaint within Brookfield internal whistleblowing platform, in keeping with Brookfield's Whistleblowing policy." (Id., ¶145.) Then, "...on November 1, 2024, Raffaelli filed a whistleblower complaint with the Securities and Exchange Commission ("SEC")." (Id., at ¶147.) Plaintiff alleges that Brookfield then offered him "a present-day payout of his projected carried interest [in the amount of \$46 million], at no market risk and no present value discount, if he would only agree to lie to their investors (and his clients) about why moving Funds 2 and 3 to Pinegrove was a good idea." (Id., at ¶151.)

Plaintiff informed BAM's counsel on November 22, 2024 that he had filed a whistleblower complaint with the SEC. (Id., at ¶155.) Plaintiff received an email on December 1, 2024 stating that "the firm has decided to effectuate now the termination of your employment in connection with the Pinegrove transaction...effective as of Monday, December 2, 2024." (Id., at ¶170.)

Third Cause of Action for Unfair Business Practices

To state a claim for violation of California's Unfair Competition Law ("UCL"), a plaintiff must establish: (1) that the defendant engaged in a business act or practice falling within at least one of three prongs — unlawful, unfair, or fraudulent — and (2) that the plaintiff has standing by having suffered injury in fact and lost money or property as a result of the unfair competition. (Bus. & Prof. Code sections 17200, 17204.)

Defendants contend that Plaintiff's UCL claim fails because it is pled in conclusory fashion against all Defendants, the UCL's protections do not extend to securities transactions, Plaintiff does not allege that his injuries were caused by the unfair business practices, and Plaintiff cannot seek the only remedies available under the UCL, restitution or injunctive relief. As to the first point, Plaintiff responds that the TAC specifically alleges misconduct by each defendant, including allegations at paragraphs 54-55 that Brookfield was lying to investors in Fund 2 about compensation, at paragraph 101 that Brookfield and Pinegrove executed anticompetitive agreements harming Brookfield's investors, at paragraphs 103-105, 108-109, and 116-129 that "Brookfield and Ranjan covertly planned (and sought Raffaelli's participation in its scheme) to merge Raffaelli's Funds into Pinegrove" while misleading investors and declining beneficial investments, at paragraph 176 against Sammut regarding improper diversion of resources, and at paragraphs 138-141, 147-48, 150, 221 that Pinegrove misled investors about the strength of its fundraising success. Those specific allegations against individual defendants are sufficient to establish something more than conclusory allegations against all defendants.

With respect to the UCL not applying to securities transactions, the TAC alleges violations of Section 206 and Rule 206(4)-8 of the Investment Advisers Act of 1940 and common law financial fraud at paragraph 211. Such violations are not limited to securities transactions, but include conduct such as fraudulent, deceptive, or manipulative acts, or an advisor violating their fiduciary duty through false or misleading statements or omissions of material fact, while acting with scienter. Application of the UCL in this context therefore is not barred by the rule that bars lawsuits based on deceptive conduct in the sale and purchase of securities. (*Overstock.com, Inc. v. Gradient Analytics, Inc.* (2007) 151 Cal.App.4th 688, 715.)

With respect to Defendants' contention that the TAC does not allege that Plaintiff's injuries were caused by unfair business practices, Plaintiff alleges that prior to his termination he was financially intentionally harmed as a result of Defendants' purposeful mismanagement underlying the UCL claim. (TAC, ¶¶10, 103-105, 108-109, 116-129, 138-141, 147-48, 150, 221.) The TAC also alleges Plaintiff's entitlement to restitution in the form of unpaid carried interest. (Id., at ¶¶210, 308-09.) It therefore adequately alleges a claim for violation of the UCL.

The Demurrer to this cause of action is accordingly OVERRULED.

Fourth Cause of Action for Breach of Contract/ Fifth Cause of Action for Breach of The Implied Covenant

A cause of action for breach of contract requires four essential elements: (1) the existence of a contract, (2) plaintiff's performance of the contract or excuse for nonperformance, (3) defendant's breach of the contract, and (4) resulting damages to the plaintiff. (*Coyote Aviation Corp. v. City of Redlands* (2025) 111 Cal.App.5th 955; *Naranjo v. Doctors Medical Center of Modesto, Inc.* (2025) 111 Cal.App.5th 408.)

Under California law, every contract contains an implied covenant of good faith and fair dealing. (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 326.) To prevail on a claim for breach of this implied covenant, in addition to pleading the existence of a contract, a plaintiff must plead that the defendant's conduct

prevented the plaintiff from receiving the benefits under the contract, that the defendant did not act fairly and in good faith, and that the defendant's conduct harmed the plaintiff. (*Id.*; *Ojeh v. Brown* (2019) 43 Cal.App.5th 1027; *Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371.)

Defendants argue that Plaintiff has not adequately alleged a claim for breach of contract because the TAC does not attach the Employment Agreement and Award Letters, set out their terms, plead their legal effect, or identify specific provisions that were breached. The TAC alleges that Defendant Brookfield made commitments to Plaintiff including:

“[A]n annual target cash bonus of up to 50% of his salary and participation in Brookfield's long term incentive plan (“LTIP”). The LTIP awards – paid in the first quarter of each fiscal year related to performance in the prior fiscal year and vested evenly over 5 years in arrears – comprised an option to purchase (annually) Class A Limited Voting Shares of Brookfield and participation in the performance of the investments made in Brookfield's first venture capital fund (“VC Fund LTIP”)” and ““carried interest” based on the performance of funds he would be launching...”

(TAC, ¶41.)

These factual allegations set out the terms governing Plaintiff's employment which he alleges were breached. Defendants then argue that Plaintiff's contract claim fails because it is not based on any promise contained in the Employment Agreement and Award Letters. The Employment Agreement includes the language under “Long-term Incentive Plan” that:

Along with other members of the management team of the Venture Capital group, you will be eligible to participate in Brookfield's long-term incentive plan(s) (“LTIP(s)”). Initially, it is expected that your annual awards will be in the form of a combination of options to purchase Class A Limited Voting Shares of Brookfield Asset Management Inc. (“Options”) and participation in the performance of the investments made in Brookfield's first venture capital fund (“VC Fund LTIP”). Currently, Options are subject to the terms of the Company's Management Share Option Plan and have a ten year life. The VC Fund LTIP is still under development. The intention is to create a notional fund, with market terms consistent with that of a new fund. Your annual award will be in the form of a notional sharing in the notional performance fee paid by investors.

(RJN, Exh. 1.)

The Award Letters confirm that Plaintiff was awarded “US\$3,750,000 of capital at work in Brookfield Technology Partners II (BTP II) (your “2021 Award”)” and “Capital at Work of \$19,200,000 reflecting an aggregate of the awards made in respect of each fiscal year of the award period” for grant years 2023 through 2026 with the caveat that “[y]our actual percentage participation will be determined following the final close of the fund; if the capital raised is different than \$1B, your percentage will be amended pursuant to the terms of the Partnership Agreement. (RJN, Exhs. 2, 3.)

Defendants' position amounts to arguing that no matter what Plaintiff should have been entitled to in accordance with participation in Brookfield's LTIP's, Plaintiff cannot state a claim for breach of the agreement under any circumstances because the agreement only says he is eligible to participate in the LTIP's, and the Award Letters state only that he is entitled to a percentage participation, but not what the capital amount will be. The allegation that Defendant committed to Plaintiff's participation in LTIP's does not conflict with the language of the agreement. Likewise, the Employment Agreement's silence as

to the amount of carried interest that Plaintiff is entitled to under the LTIP's does not conflict with the allegation that he was entitled to carried interest, as is confirmed by the Award Letters. These allegations, in conjunction with allegations of breach of fiduciary duties with respect to management of the funds relevant to the LTIP's, adequately support breach of contract. The allegations also support the claim for breach of the implied covenant of good faith and fair dealing.

The demurrer on the basis of the alleged oral contract being insufficient need not be reached since the cause of action is adequately supported on the theory of breach of written contract and so is not subject to demurrer. However, the allegations at paragraph 214 of the TAC are not so vague that they cannot support a contractual right, and Plaintiff's continuation of his job duties is sufficient to act as consideration for the alleged promise.

The demurrer to these causes of action is accordingly OVERRULED.

Sixth Cause of Action for Intentional Interference with Contractual Relations/Seventh Cause of Action for Intentional Interference with Prospective Economic Advantage

A cause of action for intentional interference with contractual relations requires five essential elements: (1) a valid contract between the plaintiff and a third party; (2) the defendant must have knowledge of that contract; (3) the defendant must commit intentional acts designed to induce a breach or disruption of the contractual relationship; (4) there must be actual breach or disruption of the contractual relationship; and (5) the plaintiff must suffer resulting damages. (*Pech v. Doniger* (2022) 75 Cal.App.5th 443.) It is generally not necessary that the defendant's conduct be wrongful apart from the interference with the contract itself. (*Ixchel Pharma, LLC v. Biogen, Inc.* (2020) 9 Cal.5th 1130.)

Similarly, a cause of action for intentional interference with prospective economic advantage requires five essential elements: (1) an economic relationship between plaintiff and some third party with the probability of future economic benefit to plaintiff; (2) defendant's knowledge of the relationship; (3) intentional acts on the part of defendant designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm to plaintiff proximately caused by defendant's acts. (*Golden Eagle Land Investment, L.P. v. Rancho Santa Fe Assn.* (2018) 19 Cal.App.5th 399; *ZF Micro Solutions, Inc. v. TAT Capital Partners, Ltd.* (2022) 82 Cal.App.5th 992.) Additionally, the plaintiff must demonstrate that defendant's conduct was independently wrongful, meaning it was proscribed by some constitutional, statutory, regulatory, common law, or other determinable legal standard. (*Winchester Mystery House, LLC v. Global Asylum, Inc.* (2012) 210 Cal.App.4th 579; *SC Manufactured Homes, Inc. v. Liebert* (2008) 162 Cal.App.4th 68.) Regarding the intent element, it is not necessary to prove defendant acted with specific intent to disrupt plaintiff's prospective economic advantage; rather, it is sufficient to show defendant knew interference was certain or substantially certain to occur as a result of the action. (*Winchester Mystery House, LLC*, 210 Cal.App.4th at 596.)

Defendants argue that Defendants Ranjan and Sammut are immune from liability for the intentional interference claims as agents and managers of certain Brookfield entities. Such immunity turns on factual circumstances regarding the defendants' scope of authority and motivations, and therefore is not appropriately resolved on demurrer in light of the allegations of the TAC appearing in paragraphs 137, 175, 179. The TAC's factual allegations at paragraphs 236-237 and 244-245 provide sufficient allegations that Plaintiff would have received compensation but for the alleged interference. The TAC also alleges that Plaintiff had specific economic relationships with identified investors that Defendants discouraged. The relationships are alleged to have been with investors brought to Brookfield solely because of Plaintiff. (TAC, ¶¶ 78, 215, 229.) As discussed above with respect to the breach of contract

claim, Plaintiff alleges an interest in carried interest which would have been owed to him personally, and not to Brookfield. The allegations against Defendants BAM, BN, and BBU are alleged to have been made through agents Defendants Ranjan and Sammut, and so are sufficient at the demurrer stage. The intentional interference claims are therefore adequately alleged.

The Demurrer to these causes of action is accordingly OVERRULED.

Eighth Cause of Action for Unjust Enrichment/Ninth Cause of Action for Quantum Meruit

While there is no cause of action in California labeled Unjust Enrichment, “[c]ommon law principles of restitution require a party to return a benefit when the retention of such benefit would unjustly enrich the recipient; a typical cause of action involving such remedy is ‘quasi-contract’” [Citations]” and “The elements of a cause of action [based on] unjust enrichment are simply stated as ‘receipt of a benefit and unjust retention of the benefit at the expense of another.’”.) “Whether termed unjust enrichment, quasi-contract, or quantum meruit, the equitable remedy of restitution when unjust enrichment has occurred ‘is an obligation (not a true contract [citation]) created by the law without regard to the intention of the parties’” (City of Oakland v. Oakland Raiders (2022) 83 Cal.App.5th 458, 477-477.)

Quantum meruit refers to the well-established principle that the law implies a promise to pay for services performed under circumstances disclosing that they were not gratuitously rendered. (Clarke v. Yu (2026) 119 Cal.App.5th 199.) A quantum meruit cause of action requires two essential elements: (1) the plaintiff acted pursuant to an explicit or implicit request for services by the defendant, and (2) the services conferred a benefit on the defendant. (Port Medical Wellness, Inc. v. Connecticut General Life Insurance Company (2018) 24 Cal.App.5th 153; Nissanoff v. UnitedHealthcare Ins. Co. (2024) 108 Cal.App.5th Supp. 1.) A properly pleaded quantum meruit complaint states that plaintiff performed certain services for defendant, alleges their reasonable value, and alleges that they were rendered at the special instance and request of defendant but were not paid for. (Haggerty v. Warner (1953) 115 Cal.App.2d 468; Brown v. Crown Gold Milling Co. (1907) 150 Cal. 376.)

Defendants argue that these causes of action must be pled in the alternative if he alleges a basis to question the validity of the agreements supporting his claim for breach of contract. They also argue that the TAC does not allege a benefit to Brookfield. The pleading can be read liberally to interpret the causes of action as being alleged in the alternative to the breach of contract claims. The TAC sufficiently alleges that Brookfield received management fees and carried interest. The issue of the scope of Plaintiff’s preexisting duties presents factual questions that are not appropriately resolved on demurrer.

The demurrer to these causes of action is accordingly OVERRULED.

Tenth Cause of Action for Breach of Fiduciary Duty/Eleventh Cause of Action for Aiding and Abetting Breach of Fiduciary Duty

The elements of a cause of action for breach of fiduciary duty are (1) the existence of a fiduciary relationship; (2) breach of fiduciary duty; and (3) damages. (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 820.) A fiduciary relationship “ordinarily arises where a confidence is reposed by one person in the integrity of another, and in such a relation the party in whom the confidence is reposed, if he voluntarily accepts or assumes to accept the confidence, can take no advantage from his acts relating to the interest of the other party without the latter’s knowledge or consent. [Citations.]” (Hodges v. County of Placer (2019) 41 Cal.App.5th 537, 546-547.) A breach of fiduciary duty can be grounded in either

negligence or fraud, depending on the circumstances of the case. (*Tribeca Companies, LLC v. First American Title Ins. Co.* (2015) 239 Cal.App.4th 1088.)

A plaintiff asserting a claim for aiding and abetting breach of fiduciary duty must establish four elements: (1) a third party's breach of fiduciary duties owed to the plaintiff; (2) the defendant's actual knowledge of that breach; (3) substantial assistance or encouragement by the defendant to the third party's breach; and (4) the defendant's conduct was a substantial factor in causing harm to the plaintiff. (*Nasrawi v. Buck Consultants LLC* (2019) 231 Cal.App.4th 328; *Casey v. U.S. Bank Nat. Assn.* (2005) 127 Cal.App.4th 1138.)

Defendant argue that Plaintiff lacks standing to assert a breach of fiduciary duty claim because it concerns reduced Fund performance and a resulting reduced carried-interest pool. However, the TAC alleges that Plaintiff was individually harmed by lost carried interest, and therefore alleges a basis for standing. Defendants then argue that the TAC's allegations at ¶¶ 280-84 of promises by Defendant Rajan do not suffice to create a fiduciary relationship because the right to contingent compensation in the control of another is insufficient to create a fiduciary relationship. However, the allegations contained therein contain promises to "take care" of Plaintiff that go beyond control over compensation. The challenges to the claim for aiding and abetting present factual questions not appropriate for resolution on demurrer.

The demurrer to these causes of action is accordingly OVERRULED.

Twelfth Cause of Action for Civil Theft Under Cal. Penal Code Section 496

California courts have distilled the elements required to establish a civil violation of Penal Code Section 496 subd. (a) into three core requirements. As articulated in *Switzer v. Wood*, drawing on *Lacagnina v. Comprehend Systems, Inc.* (2018) 25 Cal.App.5th 955, the elements are: (i) property was stolen or obtained in a manner constituting theft; (ii) the defendant knew the property was so stolen or obtained; and (iii) the defendant received or had possession of the stolen property. (*Switzer v. Wood* (2019) 35 Cal.App.5th 116.) The statute also covers defendants who concealed, sold, withheld, or aided in concealing or withholding stolen property from the owner with the requisite knowledge. Beyond these three core elements, a plaintiff must additionally establish: (iv) standing/injury, i.e. that the plaintiff was personally injured by the defendant's violation of Section 496 subd. (a) or (b); and (v) actual damages, i.e. that the plaintiff sustained actual damages as a result, which then serve as the basis for the treble damages calculation. (Cal. Penal Code Section 496 subd. (c).)

Here, the contingent carried interest that Plaintiff alleges was stolen is not alleged to have been obtained in a manner constituting theft. The demurrer to this cause of action is accordingly SUSTAINED WITH LEAVE TO AMEND.

Thirteenth Cause of Action for Declaratory Judgment

To successfully allege a cause of action for declaratory judgment a plaintiff must allege (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the rights or obligations of a party. (*Childhelp, Inc. v. City of Los Angeles* (2023) 91 Cal.App.5th 224.) The complaint is legally sufficient if it sets forth facts showing the existence of an actual controversy relating to the legal rights and duties of the respective parties and requests that these rights and duties be adjudged by the court. (*Id.*) Under Code Civ. Proc. § 1060, any person interested under a written instrument or

contract, or who desires a declaration of rights or duties with respect to another or property, may bring an action in cases of actual controversy relating to the legal rights and duties of the respective parties.

The TAC alleges a controversy related to the terms of Plaintiff's employment agreement. The demurrer to this cause of action is accordingly OVERRULED.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-03534 JOSH RAFFAELLI VS. BROOKFIELD ASSET MANAGEMENT LLC, ET AL

LINE 9

JOSH RAFFAELLI
BROOKFIELD ASSET MANAGEMENT LLC

MARK MERMELSTEIN
JOSH A. COHEN

DEFENDANTS MOTION FOR A PROTECTIVE ORDER

TENTATIVE RULING:

The tentative ruling for Line 7 is the tentative ruling for this motion and is hereby incorporated by reference.

02:00 PM

26-CIV-03505 SHANNON PEKARY VS. PALO ALTO PARK MUTUAL WATER COMPANY, ET AL.

LINE 10

SHANNON PEKARY
PALO ALTO PARK MUTUAL WATER COMPANY

PRO PER
BRIAN A. BARNHORST

PLAINTIFF: SHANNON PEKARY'S MOTION FOR PRODUCTION OF ELECTION RECORDS AND DETERMINATION OF SCOPE OF SECTION 7616 PROCEEDINGS

TENTATIVE RULING:

Plaintiff Shannon Pekary's Motion for Production and Determination of Scope of Section 7616 Proceedings is DENIED WITHOUT PREJUDICE.

Per the notice filed July 2, 2026, the request for an order compelling production of election records is moot. The request for an order determining whether a determination of the validity of the vote approving the challenged bylaw amendments remains at issue.

The Court previously expressed some doubt as to whether the scope of this proceeding under Corporations Code section 7616 encompasses the issue of whether the bylaw amendments were validly approved by the members at the 2025 annual meeting. This doubt arises in part due to the fact that former section 315 of the Civil Code—one of the predecessors of Corporations Code section 7616—"was enacted in order that court might have power to proceed in a summary manner to test the title of directors to office without recourse to the slow and cumbersome proceeding of quo warranto." (*Boericke v. Weise* (1945) 68 Cal.App.2d 407, 410.)

The text of former section 315 did not limit its scope to "any election or appointment of any director of any corporation" (Corp. Code, § 7616, subd. (a)) but permitted, "[u]pon the application of any person or body corporate aggrieved by any election held by any corporate body, the district court of the district in which such election is held must proceed forth with to hear the allegations and proofs of the parties, or otherwise inquire into the matters of complaint, and thereupon confirm the election, order a new one, or direct such other relief in the premises as accords with right and justice." (*Wickersham v. Brittan* (1892) 93 Cal. 34, 36 [italics added], quoting former Civil Code § 315.)

The language of the modern provisions of the Corporations Code, which permit courts to determine the validity of "any election or appointment of any director of any corporation" rather than "any election of a corporate body," supports a conclusion that the Legislature was limiting the reach of Section 7616 only to challenges regarding a director's office and voting rights related thereto.

That being said, there is no indication this motion has been served on any party. While no other party was entitled to notice by statute, because none had appeared at the time the motion was filed (see Code Civ. Proc., § 1010), "notice is usually considered essential in any application affecting the rights of the adverse party," "[e]ven if no statute makes notice a condition. (6 Witkin, Cal. Proc. (6th ed. 2026) Proceedings Without Trial, § 7; see *McDonald v. Severy* (1936) 6 Cal.2d 629, 631 ["general rule is that notice of motion must be given whenever the order sought may affect the rights of an adverse party"].)

Defendant Palo Alto Mutual Water Company should be afforded notice and an opportunity to respond so as to comport with principles of due process. And, given the impending trial date, the Court shall deem the motion—and any amended motion that addresses the above concern discussed above—to be one in limine to be served, briefed, and decided in accordance with July 6, 2026 Pretrial Order.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the Water Company shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

UD LAW AND MOTION CALENDAR
MONDAY, JULY 13, 2026

02:00 PM

22-CIV-01897 SHUYIN NG, ET AL. VS. CHRISTINE M. BOLTS
LINE 11

SHUYIN NG
CHRISTINE M. BOLTS

CHRISTOPHER W. ROSE
MARQUISHA L. MCGRUDER

DEFENDANT CHRISTINE BOLTS' MOTION TO COMPEL WRITTEN DISCOVERY AND REQUEST FOR MONETARY SANCTIONS *(continued from 06/01/26)*

TENTATIVE RULING:

Defendants motion to compel is denied. Plaintiff's request for sanctions is also denied.

On October 7, 2025 Defendant filed a motion to compel that was scheduled for June 1, 2026. It was purportedly unopposed.

On June 1, 2026 the Court continued the hearing to July 13, 2026 and Ordered the parties to an IDC on June 22, 2026. It is of note that Defendant twice failed to follow Court rules and direction in preparation of the Order and the Court was forced to reject the first Order and edit the second Order, which also, at least, implicitly reminded the Defendant of the Zoom address of the IDC.

On June 22, 2026 Defendant failed to attend the IDC (by acknowledged mistake), appearing in Department 11 rather than Department 30.

At the conclusion of the IDC, Commissioner Elliot's minutes reflect (in part): "The Commissioner held a brief discussion with Attorney Rose. The issues presented by this IDC appear to be relatively minor, and it seems to the Commissioner that they can - and should - be resolved without the need for the 07/13/2026 hearing on Defendant's motion to compel. It is unclear to what extent counsel have engaged in good faith meet and confer. The Commissioner strongly encourages counsel to engage, or reengage as the case may be, in good faith and straightforward meet and confer to clarify the issues that may need resolution herein. The IDC was concluded at 2:15 p.m. NOTE: After conclusion of the IDC and during preparation of this Minute Order, the Commissioner was informed that Attorney Marquisha McGruder appeared in Dept. 11 in an attempt to join the IDC. Judge Silberman's instructions in the 06/15/2026 Order were clear, however, that the IDC was to take place in Dept. 30, and the Zoom credentials for Dept. 30 were provided in the Order. If the parties would like to reset the IDC, they are encouraged to promptly email the IDC Clerk and request the earliest possible date."

According to Plaintiff's Opposition filed on June 29, 2026, Defendant attempted to reschedule the IDC but Plaintiff thwarted it on procedural grounds. Plaintiff apparently also made no effort to reach out to Defendant to resolve the dispute (if any).

As noted in its tentative for June 1, 2026 it was unclear to the Court whether the Defendant properly noticed this motion or properly served the underlying discovery. It was also unclear whether there is any discovery dispute(s) remaining. Plaintiff contends there is not and the motion is moot.

Defendant filed a reply on July 6, 2027. Having reviewed it, the Court is still unclear as to the nature of the existing dispute. At most it appears that Defendant is unsure based on the Plaintiff's responses whether Plaintiff has fully responded. But Defendant fails to identify with any specificity a single piece of substantive information that has not been provided or as to which Defendant lacks access. Accordingly, there is an insufficient record supporting the Defendant's motion and it is therefore denied. The Court would have considered the Plaintiff's request for sanctions more seriously if Plaintiff had not also contributed to this situation by both (admittedly) failing to timely respond to the discovery at issue for months and then thwarting the Court's IDC Order in what appears to be an attempt prove some sort of point. It is unclear on this record whether either or both parties have abused the discovery process. What is clear is that neither parties' conduct has been consistently respectful of each other or Court resources. In the future, the Court expects meaningful meet and confer and behavior in accordance with California Attorney Guidelines of Civility and Professionalism available at <https://www.calbar.ca.gov/legal-professionals/ethics-compliance-practice-resources/ethics/attorney-civility-and-professionalism>.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. The Court will prepare a formal written Order.

POSTED: 3:00 PM